

IN THE UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEBRA NELSON

Plaintiff,

V.

Amentum Government Services Parent
Holdings LLC, CLARENCE XANDER,
JANICE HUGHES, HEATHER GUNN,
DAKOTA THOMAS, ELIAS VELASQUEZ
And USEF ABDUL-JAMI,

Defendants.

C.A. No.: 3:25-cv-01447-MCR-ZCB

MOTION FOR LEAVE TO FILE SEVENTH AMENDED COMPLAINT

Plaintiff Debra Nelson, proceeding pro se, respectfully moves this Court for leave to file her Seventh Amended Complaint pursuant to Federal Rule of Civil Procedure 15(a)(2). In support thereof, Plaintiff states:

I. BACKGROUND

1. Plaintiff filed her Sixth Amended Complaint on January 20, 2026. (Doc. 47)
2. On February 24, 2026, Defendants filed a Motion to Dismiss the Sixth Amended Complaint. (Doc. 51)
3. On February 24, 2026, the Court issued an Order providing Plaintiff until March 13, 2026, to file a Response in Opposition to Defendants' Motion to Dismiss. (Doc. 52)

4. Since the filing of the Sixth Amended Complaint and Defendants' Motion to Dismiss, Plaintiff has obtained new evidence and procedural developments that warrant amendment.

II. LEGAL STANDARD FOR LEAVE TO AMEND

1. Federal Rule of Civil Procedure 15(a)(2) provides that leave to amend "shall be freely given when justice so requires." FED. R. CIV. P. 15(a)(2).
2. The district court has broad discretion to grant leave to amend, and "[i]n the absence of any apparent or declared reason—such as undue delay, bad faith or dilatory motive on the part of the movant, repeated failure to cure deficiencies by amendments previously allowed, undue prejudice to the opposing party by virtue of allowance of the amendment, [or] futility of amendment . . . the leave sought should . . . be 'freely given.'" *Foman v. Davis*, 371 U.S. 178, 182 (1962). "Prejudice carries the greatest weight" in the court's analysis. *Navarrete v. City of Kent*, 2023 WL 2738409, at *3 (W.D. Wash. June 6, 2023) (citing *Eminence Capital, LLC v. Aspeon, Inc.*, 316 F.3d 1048, 1052 (9th Cir. 2003)). Even where there has been undue delay, courts should grant leave to amend unless there is undue prejudice to the opposing party. *Foman*, 371 U.S. at 182.

III. PLAINTIFF HAS SATISFIED EXHAUSTION REQUIREMENTS WITH SECOND EEOC CHARGE

1. Defendants' Motion to Dismiss argues that Plaintiff failed to exhaust administrative remedies for her retaliatory termination claim, as the termination occurred on October 29, 2025, after her initial EEOC Charge filed on August 14, 2025. (Doc. 51 at pp. 13-14)
2. On March 3, 2026, Plaintiff filed a second EEOC Charge of Discrimination (No. 510-2026-05627) specifically alleging retaliatory termination.
3. On March 6, 2026, the EEOC issued a Notice of Right to Sue for Charge No. 510-2026-05627, authorizing Plaintiff to pursue her retaliatory termination claims in federal court. (Attached as Exhibit B)

4. The Seventh Amended Complaint incorporates this newly issued Notice of Right to Sue, curing the exhaustion defect identified by Defendants.
5. Other courts have permitted post-suit amendments to cure exhaustion deficiencies. See, e.g., *Luevano v. Wal-Mart Stores, Inc.*, 722 F.3d 1014, 1030 (7th Cir. 2013) (holding plaintiff who alleges retaliation for filing EEOC charge need not file second EEOC charge to exhaust retaliation claim); see also, *Tillery v. United States Dep't of Homeland Sec.*, D.C. Docket No. 9:09-cv-80572-KAM, No. 10-11657 (11th Cir. Oct 22, 2010).

IV. THE SEVENTH AMENDED COMPLAINT INCORPORATES NEW FACTUAL DEVELOPMENTS

1. The Seventh Amended Complaint incorporates new factual allegations that strengthen existing claims and address arguments raised in Defendants' Motion to Dismiss:
 - a. **FAA Whistleblower Protection Complaint** - Plaintiff filed a complaint with the FAA Whistleblower Protection Program on February 24, 2026, assigned Reference No. AAE-EWB-20260224-924, regarding safety violations.
 - b. **NLRB Proceedings** - The NLRB docketed Case No. 15-CA-381573 on February 19, 2026, regarding Amentum's unfair labor practices.
 - c. **OFCCP Complaint** - Plaintiff filed a complaint with the Office of Federal Contract Compliance Programs on February 9, 2026, regarding gender discrimination and retaliation by a federal contractor.
 - d. **Detailed Safety Violations** - The Seventh Amended Complaint includes specific factual allegations regarding:
 - Aircraft 166037 inspection performed without proper defueling (July 24-25, 2025)
 - Defective inspection cables rendering aircraft unsafe (July 30, 2025)
 - Propeller defects on Aircraft 166182 not properly reinspected

- NDI process control violations

e. **Unauthorized Time Record Modifications** - Plaintiff discovered that Defendant Heather Gunn accessed and signed Plaintiff's timesheet on May 30, 2025, without authorization.

2. These factual developments, which occurred after the filing of the Sixth Amended Complaint, are relevant to Plaintiff's hostile work environment, retaliation, and whistleblower claims.

V. THERE IS NO UNDUE PREJUDICE TO DEFENDANTS

1. Defendants will suffer no prejudice from the filing of the Seventh Amended Complaint because:
 - a. The Seventh Amended Complaint does not add new parties or new theories unrelated to existing claims.
 - b. The amendment is filed within the time allowed by the Court's scheduling order.
 - c. Defendants have not completed discovery, and amendment will not disrupt the discovery schedule.
 - d. The new factual allegations relate to the same operative facts and time period already at issue in this litigation.
2. The Seventh Amended Complaint does not change the legal theories but rather strengthens the factual foundation for existing claims.

VI. GOOD CAUSE EXISTS FOR THE DELAY

1. The factual basis for the Seventh Amended Complaint—including the EEOC's Notice of Right to Sue, FAA whistleblower acknowledgement, NLRB docket number, and OFCCP filing—all arose or were discovered after Defendants filed their Motion to Dismiss.
2. Plaintiff could not have pled these matters in the Sixth Amended Complaint, as they did not exist at that time.

3. The EEOC Notice of Right to Sue was received on March 6, 2026— days after Defendants' Motion to Dismiss.

VII. PROPOSED AMENDMENTS

1. The Seventh Amended Complaint makes the following substantive changes:
 - a. **Paragraphs 7-10** - Updates exhaustion allegations to include both EEOC charges and notices of right to sue, plus additional administrative filings.
 - b. **Paragraphs 20-73** - Adds substantially detailed factual allegations regarding safety violations, equipment failures, inspection irregularities, and time record modifications.
 - c. **Count I** - Strengthens gender discrimination allegations by specifying disparate treatment in job assignments and discipline based on gender-coded language.
 - d. **Count II** - Clarifies protected activity to include deposition testimony, and strengthens causal connection through temporal proximity analysis.
 - e. **Count III** - Expands hostile work environment allegations to include gendered gaslighting and workspace isolation.
 - f. **Count IV** - Clarifies defamation publication to third parties.
 - g. **Count V** - Strengthens IIED allegations by emphasizing coordinated fabrication of records to frame a Black female employee.
 - h. **Count VI** - Adds specific overt acts in furtherance of the conspiracy.
 - i. **Count VII** - Strengthens negligent supervision allegations by citing specific supervisor knowledge of violations.
 - j. **Count VIII** - Clarifies violations of actual FAA regulations under Florida Whistleblower Act.

VIII. ATTACHMENTS

1. The proposed Seventh Amended Complaint is attached as Exhibit A.

2. The EEOC Notice of Right to Sue for Charge No. 510-2026-05627 is attached as Exhibit B.
3. The FAA Whistleblower Protection acknowledgment is attached as Exhibit C.
4. The NLRB Charge filing acknowledgment is attached as Exhibit D.

IX. CONCLUSION

For the foregoing reasons, Plaintiff respectfully requests that this Court grant her Motion for Leave to File Seventh Amended Complaint, deeming it filed as of the date of this motion.

Respectfully submitted 13th of March, 2026,



Debra Nelson

Plaintiff, Pro Se



CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing **Plaintiff's Motion for Leave to File Seventh Amended Complaint** was served upon counsel for Defendants by email addressed as follows:

Lindsay D. Swiger

Zackary A Blanton

Jackson Lewis P.C.

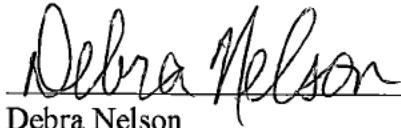
501 Riverside Avenue, Suite 902

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Respectfully submitted 13th, of March 2026,



Debra Nelson

Plaintiff, Pro Se



EXHIBIT A

Seventh Amended Complaint

IN THE UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEBRA NELSON

Plaintiff,

V.

Amentum Government Services Parent Holdings LLC, CLARENCE XANDER, JANICE HUGHES, HEATHER GUNN, DAKOTA THOMAS, ELIAS VELASQUEZ And USEF ABDUL-JAMI,

Defendants.

C.A. No.: 3:25-cv-01447-MCR-ZCB

SEVENTH AMENDED COMPLAINT AND DEMAND FOR JURY TRIAL

I. INTRODUCTION

1. Plaintiff files this Seventh Amended Complaint to fully incorporate and consolidate exhausted claims regarding her retaliatory termination, along with newly received administrative findings and regulatory filings that demonstrate a systemic pattern of discrimination and retaliation.
2. Plaintiff was employed by Defendant Amentum as a **Non-Destructive-Inspection (NDI) Technician** at the NAS Whiting Field facility in Milton, Florida, from November 18, 2024, until her unlawful and retaliatory termination on October 29, 2025.
3. Throughout her tenure, Plaintiff repeatedly acted as a whistleblower, reporting critical safety, quality, and regulatory compliance violations.
4. In response to her protected activity, Defendants orchestrated a hostile work environment, fabricated disciplinary records to create a pretextual "paper trail," and ultimately terminated her employment less than 24 hours after she provided sworn testimony in a federal civil rights lawsuit.

5. This action seeks redress for violations of **Title VII of the Civil Rights Act of 1964**, the **Florida Whistleblower Act**, **42 U.S.C. § 1985(3)**, and various Florida common law torts.

II. JURISDICTION AND VENUE

6. This Court has **subject-matter jurisdiction** under 28 U.S.C. § 1331 (federal question) and 1367 (supplemental jurisdiction over state law claims).
7. The claims arise under Title VII of the Civil Rights Act of 1964, 42 U.S.C. §§ 2000e-2 and 2000e-3; the Florida Whistleblower Act, Fla. Stat. § 448.102(3); and 42 U.S.C. § 1985(3).
8. **Venue is proper** in the Northern District of Florida because the events occurred at NAS Whiting Field in Milton, FL, and the Defendants conduct business within this Division.

III. THE PARTIES

9. **Plaintiff Debra Nelson** is a resident of North Charleston, South Carolina.
10. **Defendant Amentum Government Services Parent Holdings LLC** is a federal defense contractor and an “employer” within the meaning of Title VII.
11. **Defendant Clarence Xander** was the Site Manager at NAS Whiting Field and acted in a supervisory capacity.
12. **Defendant Janice Hughes** was an HR Generalist.
13. **Defendant Heather Gunn** was the Business Manager.
14. **Defendant Dakota Thomas** was the first shift Maintenance Supervisor.
15. **Defendant Elias Velasquez** was the second shift Maintenance Supervisor.
16. **Defendant Yusef Abdul-Jami** was an NDI Technician and a coworker of the Plaintiff who participated in the discriminatory and retaliatory scheme.

IV. EXHAUSTION OF ADMINISTRATIVE REMEDIES

17. Plaintiff has meticulously satisfied all statutory conditions precedent to filing this action.
18. **EEOC Charges:**
 1. Plaintiff filed an initial **Charge of Discrimination (No. 510-2025-08373)** on August 14, 2025, for gender discrimination and harassment.

2. On **March 3, 2026**, Plaintiff filed a second **Charge of Discrimination (No. 510-2026-05627)** specifically addressing her **retaliatory termination**.
3. On **March 6, 2026**, the EEOC issued a **Notice of Right to Sue** for Charge No. 510-2026-05627, terminating its processing and authorizing this litigation.
19. **FAA Whistleblower Protection:** On February 24, 2026, the FAA Whistleblower Protection Program received Plaintiff's report regarding safety violations, assigned **Reference No. AAE-EWB-20260224-924**.
20. **NLRB Proceedings:** On February 19, 2026, the NLRB docketed **Case No. 15-CA-381573** regarding Amentum's unfair labor practices, specifically retaliation and unlawful termination.
21. **OFCCP Complaint:** On February 9, 2026, Plaintiff filed a formal complaint with the **Office of Federal Contract Compliance Programs** regarding gender-based unequal treatment and retaliation by a federal contractor.

V. FACTUAL ALLEGATIONS

A. The May 28, 2025 Incident and Gender-Coded Hostility

22. On May 28, 2025, at approximately 2:25 p.m., five minutes before the end of Plaintiff's scheduled shift, Plaintiff was called into a meeting in the equipment room by Defendant **Elias Velasquez**, the Second Shift Maintenance Supervisor.
23. Present in the meeting were Velasquez, First Shift Maintenance Supervisor **Dakota Thomas**, Union Representative **Jimmy Murphy**, NDI Technician **Yusef Abdul-Jami**, and Plaintiff.
24. Velasquez began questioning Plaintiff regarding the contents of "Locker 2." Plaintiff responded that Abdul-Jami was responsible for the locker and pointed to him as he was standing nearby.
25. Velasquez reacted angrily and stated to Plaintiff: *"You don't have to have an attitude and you don't need this fucking shit in here."*
26. Plaintiff immediately objected and told Velasquez that he had no right to curse at her. The other men present said nothing and did not intervene.
27. Velasquez then instructed Plaintiff that NDI spare probes and equipment would be stored in the Tool Room rather than in the NDI equipment area.

28. Plaintiff explained that NDI procedures required spare parts to remain with NDI equipment and advised Velasquez that he should consult the **NDI Level III** before altering NDI process control procedures.
29. Velasquez refused to consult the Level III and insisted that the probes and cables would be placed in the Tool Room. Dakota Thomas agreed with Velasquez.
30. Immediately after the meeting, Plaintiff reported Velasquez's conduct to Human Resources.

B. May 29, 2025 Management Meeting and Retaliatory Characterization

31. On May 29, 2025, Plaintiff attended a meeting with **Clarence Xander**, Site Manager; **Janice Hughes**, HR Generalist; **Heather Gunn**, Business Manager; **Dakota Thomas**, Maintenance Supervisor; **James Carnley**, Chief Union Steward; and Plaintiff.
32. Plaintiff reported Velasquez's profanity and explained that Abdul-Jami had not maintained **NDI process control compliance**, which could expose the company to regulatory penalties if aircraft inspections were conducted without proper documentation.
33. Instead of addressing the safety concern, Defendant **Clarence Xander** told Plaintiff she had an "attitude" and described her communications with Abdul-Jami as "aggressive."
34. When Plaintiff asked why Velasquez was not disciplined for cursing at her, Xander responded that "*you cursed too.*"
35. Plaintiff denied making any such statement and repeatedly asked what she was accused of saying. Xander refused to provide details and repeatedly stated "*it doesn't matter.*"
36. No corrective action was taken against Velasquez or Abdul-Jami.

C. Medical Leave and Unauthorized Alteration of Time Records

37. Due to the hostile work environment and stress, Plaintiff began a leave of absence on **May 30, 2025**.
38. On the same day Plaintiff attempted to log into the Costpoint payroll system to certify her time but discovered she had been locked out of the system.
39. On **June 2, 2025**, Plaintiff contacted Payroll Specialist **Tionne Thomas** to reset her password.
40. After regaining access, Plaintiff discovered that her time records had been modified.

41. Payroll informed Plaintiff that **Heather Gunn** had accessed and signed Plaintiff's timesheet on May 30, 2025.
42. Plaintiff did not authorize Gunn to access or alter her time records.
43. Plaintiff requested that Payroll reopen the timesheet so she could correct the entries.
44. Plaintiff reasonably believed the modification of her time records was an attempt to create an appearance that she had improperly recorded work hours.

D. Return From Leave and Continuing Retaliation

45. On **July 2, 2025**, Plaintiff returned from leave and attended a meeting with **Clarence Xander, Heather Gunn, Dakota Thomas, James Carnley**, and Plaintiff.
46. Plaintiff had previously stated she would return once discrepancies in the NDI program were corrected.
47. Upon returning, Plaintiff discovered that a broken probe and other non-compliant equipment remained in the NDI kit.
48. Plaintiff again asked Xander about the allegation that she had cursed at a supervisor. Xander again refused to explain the accusation and stated that "*it doesn't matter.*"
49. Plaintiff informed Xander that falsely accusing her of misconduct constituted defamation.
50. Xander ended the meeting without addressing Plaintiff's concerns.

E. Safety Violations and Inspection Irregularities

51. On **July 24, 2025**, Plaintiff conducted a **6300-hour eddy current inspection** on aircraft **166037** in the Phase Hangar.
52. On **July 25, 2025**, Plaintiff learned from Phase Lead **Tom Beauman** that the aircraft had not been properly defueled and required additional panel removal before the inspection could be properly performed.
53. Beauman informed Plaintiff that a similar incident had previously occurred involving NDI Technician **Yusef Abdul-Jami**.
54. Plaintiff reported the status of the aircraft inspection to Shop Lead **Phillip Sorrow**.
55. On **July 29, 2025**, Plaintiff attended a meeting with **Dakota Thomas, Heather Gunn, Janice Hughes, Elias Velasquez, James Carnley**, and Plaintiff regarding the inspection.

56. Plaintiff explained the circumstances and noted that Abdul-Jami had previously made a similar error but had not been subjected to the same scrutiny.

F. Equipment Failure and Safety Reporting

57. On **July 30, 2025**, Plaintiff was assigned an eddy current inspection but discovered that the inspection cable was defective.

58. Plaintiff attempted to obtain a replacement cable but none were available.

59. Plaintiff checked the Tool Room, which management had previously designated for spare parts, but Tool Room staff informed Plaintiff that no NDI equipment was stored there.

60. As a result, Plaintiff could not perform the required eddy current inspection.

61. Later that day Plaintiff conducted a **fluorescent penetrant inspection** on propellers for aircraft **166182** and identified multiple defects.

62. Plaintiff documented the defects in the OOMA system and reported them to **Elias Velasquez**.

63. Velasquez initially believed the propellers would be painted, but Plaintiff informed him that the defects required blending before any painting could occur.

64. Velasquez stated the propellers would be reinspected during day shift.

65. Plaintiff later learned that no maintenance records existed showing the propellers were reinspected or repaired.

G. False Turnover Log Entry and Hostile Work Environment

66. On **August 4, 2025**, Plaintiff discovered that **Yusef Abdul-Jami** had entered a note in the turnover log claiming that the cable Plaintiff reported as defective was functioning properly before and after Plaintiff used it.

67. Plaintiff maintains the cable was defective and had verified the defect using multiple probes.

68. Plaintiff reported the issue to Velasquez and expressed concern that Abdul-Jami had replaced the cable to discredit her report.

69. Velasquez immediately defended Abdul-Jami and told Plaintiff that she had an "attitude," stating that Plaintiff would "look stupid" if she filed a report.

70. Plaintiff reasonably believed this treatment reflected gender-based bias and a hostile work environment.

H. Removal of NDI Workspace

71. During the week of **August 4–8, 2025**, management informed Plaintiff that the NDI department could no longer use the Safety Office as its designated workspace.

72. As a result, the NDI department no longer had a dedicated shop or office location.

73. Plaintiff was required to perform NDI work in rotating locations within the facility.

74. Plaintiff had never previously worked in an NDI program without a dedicated workspace.

I. Fabricated Accusation and Written Reprimand

75. On **August 5, 2025**, corporate management informed Plaintiff that she had been accused of saying *“Who the fuck do you think you are.”*

76. Plaintiff categorically denies making this statement.

77. Management refused to identify the individual who made the accusation.

78. Plaintiff reasonably believes the accusation was fabricated in retaliation for her complaints.

79. On **August 6, 2025**, **Dakota Thomas**, **Janice Hughes**, and **Heather Gunn** issued Plaintiff a written reprimand for **“unauthorized absence.”**

80. The reprimand concerned Plaintiff’s absence on **July 31 and August 1, 2025** for a scheduled court date.

81. Plaintiff had previously informed **Elias Velasquez** and Payroll Specialist **Tionne Thomas** that she did not have sufficient leave time and would need to use personal time and unauthorized leave, which had been allowed in the past.

82. Plaintiff was never informed that the leave request had been denied.

J. Union Grievance Process

83. On **August 6, 2025**, Plaintiff spoke with **Jamie Littlefield**, ADBR, regarding grievances involving gender discrimination, retaliation, hostile work environment, and disability leave.

- 84. Plaintiff was informed that management personnel would be required to undergo training as a result of her complaints.
- 85. Plaintiff was also informed that a **Step 3 grievance meeting** would be scheduled.
- 86. On **August 18, 2025**, Plaintiff emailed Littlefield requesting scheduling of the Step 3 grievance meeting. (**Exhibit A**).
- 87. On **October 16, 2025**, Plaintiff again contacted Littlefield offering to meet at a neutral location. (**Exhibits B–C**).
- 88. Littlefield refused to schedule the meeting unless Plaintiff returned to the workplace.

K. Management Demand to Return to Work

- 89. On **September 18, 2025**, HR Representative **Ja’nice Hughes** emailed Plaintiff demanding that she return to work.
- 90. Plaintiff responded that management had done “**nothing about the hostile work environment.**” (**Exhibit D**).

L. Termination

- 91. On **October 29, 2025**, Plaintiff received a termination notice from **Amentum Government Services Parent Holdings LLC**. (**Exhibit E**).
- 92. The termination relied upon the same disputed accusations and disciplinary actions described above.
- 93. Plaintiff alleges the termination was the culmination of the retaliatory conduct described throughout this complaint.

COUNT I – GENDER DISCRIMINATION (TITLE VII)

(Against Defendant Amentum)

- 94. Plaintiff is a female employee, a member of a protected class.
- 95. Defendant Amentum treated Plaintiff less favorably than similarly situated male employees, specifically NDI Technician **Yusef Abdul-Jami**.
- 96. **Disparate Treatment in Job Assignments:** Plaintiff was coerced into taking on a heavier workload and time-consuming tasks while Abdul-Jami received lighter assignments and was not held accountable for failing to maintain "process control compliance."

97. **Disparate Treatment in Discipline:** Plaintiff was subjected to verbal abuse by Velasquez and accused of having an "attitude" and displaying "aggressive" behavior, while Abdul-Jami and other male coworkers were not subjected to such scrutiny or character attacks despite documented safety and performance issues.
98. **Gender-Based Motive:** The discriminatory intent is evidenced by Site Manager Xander's use of **gender-coded language** ("aggressive," "attitude") to describe the Plaintiff's technical reports of safety violations. These terms were not applied to male employees.
99. As a direct result of this discrimination, Plaintiff has suffered a loss of wages, loss of promotion opportunities, and severe emotional distress.

COUNT II – RETALIATION (TITLE VII)

(Against Defendant Amentum)

100. Plaintiff engaged in **statutorily protected activity** by: a. Reporting safety and compliance violations (May 2025). b. Filing an internal Ethics complaint (August 5, 2025). c. Filing an EEOC Charge of Discrimination (August 14, 2025). d. Providing **sworn deposition testimony** in a federal civil rights lawsuit (October 28, 2025).
101. **Materially Adverse Employment Actions:** Amentum took a series of adverse actions, including fabricating disciplinary warnings for "no-call-no-show" and "unauthorized leave," and the **ultimate adverse action of termination** on October 29, 2025.
102. **Causal Connection:** A clear causal link exists through **extreme temporal proximity**. Plaintiff was terminated less than 24 hours after providing testimony regarding Amentum's misconduct.
103. The reasons provided for the termination were purely **pretextual**, as the "unauthorized leave" had been previously approved by Payroll and the "unprofessional conduct" was based on a fabricated accusation ("Who the fuck do you think you are") that was concealed from the Plaintiff until it could be used to justify her firing.

COUNT III – HOSTILE WORK ENVIRONMENT (TITLE VII)

(Against Defendant Amentum)

104. Plaintiff was subjected to unwelcome harassment based on her sex that was **severe and pervasive** enough to alter the terms and conditions of her employment.
105. The hostile environment included: a. **Verbal abuse:** Supervisor Velasquez cursing at Plaintiff in front of male peers and shouting "Plaintiff don't have to have an attitude.". b. **Gendered Gaslighting:** Site Manager Xander falsely accusing Plaintiff of cursing and then

stating "it doesn't matter" when asked for proof, effectively silencing her. c. **Workspace Isolation:** Stripping the NDI department of a dedicated office and forcing Plaintiff to work in rotating locations. d. **Refusal to Remedially Act:** Management repeatedly dismissed Plaintiff's reports of safety violations and Abdul-Jami's non-compliance, choosing instead to label the Plaintiff as "aggressive."

106. This conduct resulted in Plaintiff being forced to take **two different medical leaves of absence** for anxiety, sleeplessness, and emotional trauma. Amentum knew of the harassment and failed to take prompt remedial action.

COUNT IV – DEFAMATION (FLORIDA COMMON LAW)

(Against Defendants Velasquez, Xander, Thomas, and Hughes)

107. **False Statements:** a. **Hughes and Thomas** published a written memorandum to Amentum management stating Plaintiff took "**unauthorized leave**" when they knew the leave was authorized. b. **Velasquez** falsely accused Plaintiff of cursing during the May 28 meeting. c. **Xander** falsely stated to Plaintiff and management that "**Plaintiff cursed too**" to justify the lack of discipline for Velasquez.
108. **Publication to Third Parties:** These false statements were communicated to Amentum Corporate management and coworkers, and were **permanently placed in Plaintiff's personnel file**.
109. These communications are **not privileged** because they were made with **actual malice** and a reckless disregard for the truth for the express purpose of creating a pretext for Plaintiff's retaliatory termination.
110. These statements caused Plaintiff reputational harm, loss of employment, and severe emotional distress.

COUNT V – INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

(Against Defendants Amentum, Velasquez, Hughes, and Thomas)

111. Defendants engaged in **extreme and outrageous conduct** that goes beyond all possible bounds of decency in a civilized society.
112. Specifically, Defendants **coordinated a fabrication** of disciplinary records to frame a Black female employee for termination immediately following her exercise of her legal right to testify in a federal civil rights case.
113. The conduct included: a. Fabricating a racially and gender-biased accusation ("Who the fuck do you think you are") to set her up for termination. b. Shouting and cursing at

Plaintiff in a small equipment room (Velasquez). c. Terminating her employment **less than 24 hours** after a federal deposition.

114. This conduct was intended to cause, and did cause, **severe emotional distress**, including humiliation, anxiety, and ongoing emotional trauma requiring medical leave.

COUNT VI – CIVIL CONSPIRACY (42 U.S.C. § 1985(3))

(Against Individual Defendants Xander, Hughes, Gunn, Thomas, Velasquez, and Abdul-Jami)

115. The individual Defendants **knowingly acted in concert** and reached an agreement to deprive Plaintiff of the equal protection of the laws on the basis of her sex.
116. **Overt Acts in Furtherance of the Conspiracy:** a. Velasquez and Thomas **concealed FAA-related safety violations** to protect Abdul-Jami. b. Xander, Hughes, and Gunn **coordinated to discredit Plaintiff** by labeling her "aggressive" to divert attention from her safety reporting. c. The Defendants **manipulated disciplinary procedures** and fabricated "unauthorized leave" to justify her termination.
117. This conspiracy was specifically aimed at interfering with Plaintiff's right to provide **unimpeded federal testimony**, as evidenced by the immediate termination following her deposition.
118. Defendants acted **outside the normal scope of employment** by engaging in the intentional fabrication of records and the concealment of federal safety violations.

COUNT VII – NEGLIGENT SUPERVISION (FLORIDA COMMON LAW)

(Against Defendant Amentum)

119. Defendant Amentum had a legal duty to supervise its managers and ensure they did not engage in tortious or unsafe conduct.
120. Amentum **breached this duty** by: a. Failing to supervise and correct documented **FAA-related safety violations** after notice. b. Permitting **false and unverified accusations** to remain in Plaintiff's file. c. Failing to discipline Velasquez after he was reported for verbal abuse.
121. Amentum knew or should have known its supervisors were engaging in retaliatory and procedurally improper conduct, as Plaintiff had filed numerous internal reports and an EEOC charge.
122. This breach was the proximate cause of Plaintiff's emotional distress and economic losses.

COUNT VIII – FLORIDA WHISTLEBLOWER ACT (FLA. STAT. § 448.102)

(Against Defendant Amentum)

123. Plaintiff **objected to and refused to participate in activities that violated actual laws, rules, or regulations**, specifically: a. **FAA safety regulations** regarding the inspection of aircraft (e.g., Aircraft 166037) without proper preparation or process control. b. Violations of **NDI Level III requirements** by failing to replace broken probes and cables essential for safe aircraft inspection. c. The failure to reinspect or repair propeller defects on **Aircraft 166182**.
124. In response to these objections, Amentum took **retaliatory personnel actions**, including: a. Instructing Plaintiff not to communicate with coworkers about safety (Silencing). b. Subjecting her to **gender-coded criticism** to minimize her technical findings. c. **Fabricating "unauthorized leave"** records to terminate her immediately after her deposition.
125. These actions constitute a direct violation of Fla. Stat. § 448.102(3).

VII. DAMAGES

126. As a direct result of Defendants' unlawful conduct, Plaintiff has suffered: a. **Back Pay and Front Pay**: Loss of wages and benefits from October 29, 2025, through the date of judgment. b. **Compensatory Damages**: For emotional distress, mental anguish, loss of enjoyment of life, and reputational injury. c. **Punitive Damages**: Against Defendants Amentum and the individual Defendants for conduct that was malicious or demonstrated reckless indifference to Plaintiff's federally protected rights.

VIII. PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court enter judgment in her favor and award:

1. **Declaratory relief** that Defendants' conduct violated Title VII and the Florida Whistleblower Act;
2. **Back Pay, Front Pay, and Lost Benefits** in an amount to be proven at trial;
3. **Compensatory damages** for emotional distress and reputational injury;
4. **Punitive damages** in an amount sufficient to punish and deter Defendants;
5. **Attorney's fees and costs**; and

6. Such other relief as the Court deems just and proper.

IX. JURY DEMAND

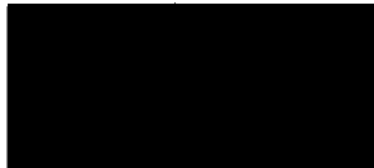
Plaintiff hereby **demands a trial by jury** on all issues so triable.

Respectfully submitted 13th of March, 2026,



Debra Nelson

Plaintiff, Pro Se



CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing **Plaintiff's Seventh Amended Complaint** was served upon counsel for Defendants by email addressed as follows:

Lindsay D. Swiger

Zackary A Blanton

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Respectfully submitted 13th, of March 2026,



Debra Nelson

Plaintiff, Pro Se



EXHIBIT B

NEW EEOC Notice of Right to Sue



U.S. EQUAL EMPLOYMENT OPPORTUNITY COMMISSION

Miami District Office
100 SE 2nd St, Suite 1500
Miami, FL 33131
(800) 669-4000
Website: www.eeoc.gov

NOTICE OF RIGHT TO SUE (ISSUED ON REQUEST)

(This Notice replaces EEOC FORMS 161, 161-A & 161-B)

Issued On: 03/06/2026

To: Debra E. Nelson

Charge No: 510-2026-05627

EEOC Representative and email: RODNEY MOZARD
INVESTIGATOR
RODNEY.MOZARD@EEOC.GOV

NOTICE OF RIGHT TO SUE (ISSUED ON REQUEST)

The EEOC has granted your request that the agency issue a Notice of Right to Sue, where it is unlikely that EEOC will be able to complete its investigation within 180 days from the date the charge was filed.

The EEOC is terminating its processing of this charge.

NOTICE OF YOUR RIGHT TO SUE

This is official notice that the EEOC has dismissed your charge and has issued you notice of your right to sue the respondent(s) on this charge. If you choose to file a lawsuit against the respondent(s) on this charge under federal law in federal or state court, **your lawsuit must be filed WITHIN 90 DAYS of your receipt of EEOC's official notice of dismissal.** You should keep a record of the date you received the EEOC's official notice of dismissal. Your right to sue based on this charge will be lost if you do not file a lawsuit in court within 90 days. (The time limit for filing a lawsuit based on a claim under state law may be different.)

If you file a lawsuit based on this charge, please sign-in to the EEOC Public Portal and upload the court complaint to charge 510-2026-05627.

On behalf of the Commission,

Digitally Signed By: Evangeline Hawthorne
03/06/2026

Evangeline Hawthorne
Director

Cc:

John Remy
JACKSON LEWIS P.C.
11790 Sunrise Valley Drive, #400
Reston, VA 20191

Janice Hughes
Amentum
7701 Uss Enterprise, Building 1429
Milton, FL 32570

NA NA
7701 Uss Enterprise, Building 1429
Milton, FL 32570

Lindsay D Swiger
Jackson Lewis P.C.
501 Riverside Ave, Suite 902
Jacksonville, FL 32202

Please retain this Notice for your records.

EXHIBIT C

FAA Whistleblower acknowledgment

2/24/26, 8:16 AM

Home

 An official website of the United States government [Here's how you know](#) 
 United States Department of Transportation (<https://www.transportation.gov>)



**Federal Aviation
Administration**

(<https://www.faa.gov/>)

AIR 21 Whistleblower Protection Program Safety Reporting Form

On February 24, 2026, the FAA Whistleblower Protection Program received your report. Your reference number is AAE-EWB-20260224-924. Your report will be evaluated to determine if it is within the purview of the AIR21 Whistleblower Protection Program. If not, you may not get a further response.

Finish

GET IMPORTANT INFO/DATA

[Accident & Incident Data \(https://www.faa.gov/data_research/accident_incident/\)](https://www.faa.gov/data_research/accident_incident/)

[Charting & Data \(https://www.faa.gov/air_traffic/flight_info/aeronav/\)](https://www.faa.gov/air_traffic/flight_info/aeronav/)

[Flight Delay Information \(https://www.fly.faa.gov/flyfaa/usmap.jsp\)](https://www.fly.faa.gov/flyfaa/usmap.jsp)

[Supplemental Type Certificates \(https://drs.faa.gov/browse\)](https://drs.faa.gov/browse)

[Type Certificate Data Sheets \(TCDS\) \(https://drs.faa.gov/browse\)](https://drs.faa.gov/browse)

POLICIES, RIGHTS, & LEGAL

[About DOT \(https://www.transportation.gov/\)](https://www.transportation.gov/) | [Budget and Performance \(https://www.transportation.gov/budget/dot-budget-and-performance\)](https://www.transportation.gov/budget/dot-budget-and-performance) | [Civil Rights \(https://www.transportation.gov/civil-rights-awareness-enforcement/no-fear-act\)](#) | [Office of Inspector General \(https://www.oig.dot.gov/\)](https://www.oig.dot.gov/)

| [Privacy Policy \(https://www.faa.gov/privacy/\)](https://www.faa.gov/privacy/) | [USA.gov \(https://www.usa.gov/\)](https://www.usa.gov/) | [Web Policies and Notices \(https://www.faa.gov/web_policies\)](https://www.faa.gov/web_policies) | [Web Standards \(https://www.faa.gov/web-standards\)](#)

<https://www.facebook.com/FAA> <https://x.com/faaews> <https://www.instagram.com/faa/> <https://www.linkedin.com/company/faa/> <https://www.youtube.com/user/FAAnews> <https://medium.com/faa>

U.S. Department of Transportation
Federal Aviation Administration
800 Independence Avenue, SW
Washington, DC 20591
(866) TELL-FAA | (866) 835-5322

[Privacy Policy \(https://www.faa.gov/privacy/\)](https://www.faa.gov/privacy/)

[Accessibility \(https://www.faa.gov/accessibility/\)](https://www.faa.gov/accessibility/)

EXHIBIT D

NLRB Charge Acknowledgment



UNITED STATES GOVERNMENT
NATIONAL LABOR RELATIONS BOARD

REGION 15
600 South Maestri Place – 7th Floor
New Orleans, LA 70130-3413

Agency Website:
www.nlrb.gov
Telephone: (504)589-6362
Fax: (504)589-4069



Download
NLRB
Mobile App

February 23, 2026

Via E-Mail

Debra E Nelson
2718 Crestline Drive
North Charleston, SC 29405
denelson62@outlook.com

Re: Amentum Government Services
Parent Holdings LLC
Case 15-CA-381573

Dear Debra Nelson:

The charge that you filed in this case on February 19, 2026 has been docketed as case number 15-CA-381573. This charge has **not** yet been assigned to an investigator. This letter outlines the required information and evidence you initially need to provide, explains your right to be represented, and provides a brief explanation of our procedures, including how to submit documents to the NLRB.

Required Information and Evidence: As the party who filed the charge in this case, it is your responsibility to present evidence in support of your allegations. Accordingly, please submit the following information to our office **using the Agency's e-filing system at www.nlrb.gov no later than close of business on Monday, March 9, 2026.**

- A chronological outline or timeline of the relevant sequence of events and exchanges (verbal and in person communications) related to the charge allegations. Include the names and titles of any involved Union and/or Employer representatives;
- Relevant documentation related to the allegations in the charge as well as supporting communications and documents such as letters, e-mails, text messages, phone records, etc.; and
- A list of the witnesses you intend to present, their contact information (e-mail and phone) and a brief summary of each witness's testimony.

Amentum Government Services Parent
Holdings LLC
Case 15-CA-381573

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February 23, 2026

This information must be returned to this office by Monday, March 9, 2026. Please e-file the information as "Evidence" and select "Charging Party" as the Participant Type when prompted. If the above information is not received by then, your charge may be subject to dismissal because of your failure to cooperate in the investigation. If the charge is dismissed, you will receive a dismissal letter. The charged party will also receive a copy of the dismissal letter.

Right to Representation: You have the right to be represented by an attorney or other representative in any proceeding before us. If you choose to be represented, your representative must notify us in writing of this fact as soon as possible by completing *Form NLRB-4701, Notice of Appearance*. This form is available on our website, www.nlr.gov, or from an NLRB office upon your request.

If you are contacted by someone about representing you in this case, please be assured that no organization or person seeking your business has any "inside knowledge" or favored relationship with the National Labor Relations Board. Their knowledge regarding this proceeding was only obtained through access to information that must be made available to any member of the public under the Freedom of Information Act.

Preservation of all Potential Evidence: Please be mindful of your obligation to preserve all relevant documents and electronically stored information (ESI) in this case, and to take all steps necessary to avoid the inadvertent loss of information in your possession, custody or control. Relevant information includes, but is not limited to, paper documents and all ESI (e.g. SMS text messages, electronic documents, emails, and any data created by proprietary software tools) related to the above-captioned case.

Prohibition on Recording Affidavit Interviews: If affidavits are taken in this case, please note it is the policy of the General Counsel to prohibit affiants from recording the interview conducted by Board agents when subscribing Agency affidavits. Such recordings may impede the Agency's ability to safeguard the confidentiality of the affidavit itself, protect the privacy of the affiant and potentially compromise the integrity of the Region's investigation.

Correspondence: All documents submitted to the Region regarding your case MUST be filed through the Agency's website, www.nlr.gov. This includes all formal pleadings, briefs, as well as affidavits, documentary evidence, and position statements. The Agency requests all evidence submitted electronically to be in the form it is normally used and maintained in the course of business (i.e., native format). Where evidence submitted electronically is not in native format, it should be submitted in a manner that retains the essential functionality of the native format (i.e., in a machine-readable and searchable electronic format).

If you have questions about the submission of evidence or expect to deliver a large quantity of electronic records, please email R15-Investigation@nlrb.gov. If you have emailed and not received a response, you may contact **Regional Attorney Kevin McClue**, whose telephone number is (504)321-9576. If you cannot e-file your documents, you must provide a statement explaining why you do not have access to the means for filing electronically or why filing electronically would impose an undue burden.

Amentum Government Services Parent
Holdings LLC
Case 15-CA-381573

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February 23, 2026

In addition, this Region will be issuing case-related correspondence and documents, including complaints, compliance specifications, dismissal letters, deferral letters, and withdrawal letters, electronically to the email address you provide. To ensure that you receive important case-related correspondence, **you must provide this office with your preferred email address.** These steps will ensure that you receive correspondence faster and at a significantly lower cost to the taxpayer. If there is some reason you are unable to receive correspondence via email, please contact this office to discuss the circumstances that prevent you from using email.

Controlled Unclassified Information (CUI): This National Labor Relations Board (NLRB) proceeding may contain Controlled Unclassified Information (CUI). Subsequent information in this proceeding may also constitute CUI. National Archives and Records Administration (NARA) regulations at 32 CFR Part 2002 apply to all executive branch agencies that designate or handle information that meets the standards for CUI.

* * *

Information about the Agency, the procedures we follow in unfair labor practice cases and our customer service standards is available on our website, www.nlr.gov or from an NLRB office upon your request. *NLRB Form 4541, Investigative Procedures* offers information that is helpful to parties involved in an investigation of an unfair labor practice charge.

We can provide assistance for persons with limited English proficiency or disability. Please let us know if you or any of your witnesses would like such assistance.

Very truly yours,

/s/ M. Kathleen McKinney

M. Kathleen McKinney
Regional Director

MKM/zep
Enclosure: Copy of Charge

FORM NLRB-501
(3-21)UNITED STATES OF AMERICA
NATIONAL LABOR RELATIONS BOARD
CHARGE AGAINST EMPLOYER

DO NOT WRITE IN THIS SPACE

Case

15-CA-381573

Date Filed

2/19/2026

INSTRUCTIONS: File an original with NLRB Regional Director for the region in which the alleged unfair labor practice occurred or is occurring.

1. EMPLOYER AGAINST WHOM CHARGE IS BROUGHT

a. Name of Employer

Amentum Government Services Parent Holdings LLC

b. Tel. No.

(850) 484-6250

c. Cell No.

(850) 816-9252

f. Fax No.

d. Address (Street, city, state, and ZIP code)

NAS Whiting Field
7701 USS Enterprise Street, Building 1429
Milton, FL 32570

e. Employer Representative

Ja'nice Hughes
HR Representative

g. e-mail

Janice.Hughes@amentum.com

h. Number of workers employed
100i. Type of Establishment (factory, mine, wholesaler, etc.)
Military Maintenancej. Identify principal product or service
Aviation Maintenance

The above-named employer has engaged in and is engaging in unfair labor practices within the meaning of section 8(a), subsections (1) and (3) of the National Labor Relations Act, and these unfair labor practices are practices affecting commerce within the meaning of the Act, or these unfair labor practices are practices affecting commerce within the meaning of the Act and the Postal Reorganization Act.

2. Basis of the Charge (set forth a clear and concise statement of the facts constituting the alleged unfair labor practices)

On September 18, 2025, the Employer discriminated against employee Debra Nelson by threatening her with discipline if she did not return to work in retaliation for and/or in order to discourage protected concerted activities, including raising workplace safety and compliance concerns and pursuing the grievance process with the Union.

On October 29, 2025, the Employer discriminated against employee Debra Nelson by discharging her in retaliation for and/or in order to discourage protected concerted activities, including raising workplace safety and compliance concerns and pursuing the grievance process with the Union.

3. Full name of party filing charge (if labor organization, give full name, including local name and number)

Debra Nelson

4a. Address (Street and number, city, state, and ZIP code)

2718 Crestline Drive
North Charleston, SC 29405

4b. Tel. No.

843-813-1335

4c. Cell No.

843-277-4142

4d. Fax No.

4e. e-mail
denelson62@outlook.com

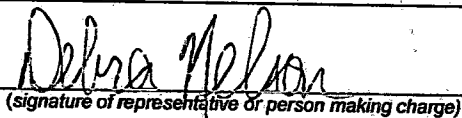
5. Full name of national or international labor organization of which it is an affiliate or constituent unit (to be filled in when charge is filed by a labor organization)

6. DECLARATION

I declare that I have read the above charge and that the statements are true to the best of my knowledge and belief.

Tel. No.

843-277-4142

Office, if any, Cell No.
843-813-1335

Debra Nelson

(signature of representative or person making charge)

(Print/type name and title or office, if any)

Fax No.

Address:

2718 Crestline Drive, North Charleston, SC 29405

Date:..

2/18/2026

e-mail

denelson62@outlook.com

WILLFUL FALSE STATEMENTS ON THIS CHARGE CAN BE PUNISHED BY FINE AND IMPRISONMENT (U.S. CODE, TITLE 18, SECTION 1001)

PRIVACY ACT STATEMENT

Solicitation of the information on this form is authorized by the National Labor Relations Act (NLRA), 29 U.S.C. § 151 et seq. The principal use of the information is to assist the National Labor Relations Board (NLRB) in processing unfair labor practice and related proceedings or litigation. The routine uses for the information are fully set forth in the Federal Register, 71 Fed. Reg. 74942-43 (Dec. 13, 2006). The NLRB will further explain these uses upon request. Disclosure of this information to the NLRB is voluntary; however, failure to supply the information may cause the NLRB to decline to invoke its processes.

1-3763505241